

Tab 32 - documents enclosed with Metro South Health's letter of 5 June 2026

WC/2024/227 · Shepherd v Workers' Compensation Regulator · supplementary to Annexure A to the notices of 28 August 2026

By its letter of 5 June 2026 to Commissioner Dwyer, reference K-LM26/729 (Annexure A, Tab 20, confirmed by the Respondent on 24 September 2026), Metro South Hospital and Health Service enclosed the documents below in response to the notice of non-party disclosure: under Item 6, "the attached Role Description for Manager of Switchboard Services"; and under Item 13, the HR delegation signed 23 November 2022, Directive 01/20 and the Implementation Guideline dated 14 April 2020.

Tab	Document	Date	Pages	At
32A	Role Description, Manager Switchboard Services, Logan Hospital (AO4), RD 30478699. Enclosed by Metro South Health under Item 6	as at 2021	6	2-7
32B	Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms N Cridland, A/Health Service Chief Executive. Enclosed under Item 13. (The same instrument is at Tab 29, admitted 8 September 2026.)	signed 23 Nov 2022; effective 5 Dec 2022	1	8
32C	Directive 01/20, Employment Arrangements in the Event of a Health Pandemic. Enclosed under Item 13	effective 16 Mar 2020	9	9-17
32D	Implementation Guideline - Directive 01/20, Version 2. Enclosed under Item 13	14 Apr 2020	13	18-30

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Manager Switchboard Services

Job Ad Reference:	RD 30478699		
Status:	Permanent Full Time		
Unit/Department:	Health Information Managements Services, Clinical Informatics		
Location:	Logan Hospital, Metro South Hospital and Health Service		
Contact:		Salary range:	\$  to \$  per
Classification:	AO4	Closing date:	
Online applications:	https://metrosouth.health.qld.gov.au/job-vacancies		
Email applications:	@health.qld.gov.au (EOI only)		

Applications from third parties will not be accepted

Purpose of the role

To co-ordinate, manage and lead a team of administrative officers that support a client focused telecommunication service at the Logan Hospital. The Manager Switchboard Services is also accountable for the effective technical co-ordination of an Alcatel 4059 PABX and 'onsite' Paging system, LTR duties as required and technological management of switchboard services, phone and paging system capacity.

Your key responsibilities

- Fulfil the responsibilities of this role in accordance with Queensland Health's core values, as outlined above.
- Manage the Switchboard at Logan Hospital using a sound understanding of switchboard service provision and the technology used within a switchboard environment showing an ability to provide technical assistance to switchboard operators to maintain services including an understanding of when and how to escalate service requests to relevant technicians.
- Manage staff according to HRM framework including: -
 - Performance planning and performance management of staff,
 - Identify staff resource requirements and initiate recruitment,
 - Coordinate staff training by identifying training needs, development of training programs and induction and training of new and existing staff.
 - Develop and monitor systems for rostering and leave management.
 - Manage the performance appraisal and development of subordinate staff.
- Collaborate with EHealth and DPT (District Technology Services) to manage capacity of systems to meet needs of Logan Beaudesert Facilities.
 - Manage capacity of PABX using reports provided by DPT Comms and Nets team
 - Manage incoming line capacity in conjunction with SIM3 (state wide voice and paging team)
 - Manage switchboard console licencing
 - Manage paging system service provision in conjunction with DPT & SIM3. Including antennas, servers, systems and operating platforms of systems.
- Understanding of technical issues associated to PABX, SPOK paging system such as capacity of systems both software and hardware, indial number range issues, analogue vs digital lines and benefits of either

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- Manage number range capacity, sequencing allocation
- Manage requests for new requirements and break/fix of problems to for Logan and Beaudesert Hospitals. Supervising vendors on site, determining specific requirements from vendors. Reviewing documentation for upgrades for impacts to whole of hospital services and liaising with stake holders prior to approval provided to vendors.
- Manage the procurement and provision of telephony equipment and services for Logan and Beaudesert Hospitals. Authorize and manage all communication device allocations, returns, repairs and purchases including maintaining databases and tracking systems and identify cost efficiencies.
 - Provide quotes, information for telecommunications related queries, requests and orders for desk phones, including fax lines but not fax equipment, DECT phones, Cisco phones and related accessories to Logan and Beaudesert Hospitals facilities.
 - Develop telecommunications request forms and undertake cost recovery processes
 - Manage purchase of telecommunications equipment
 - Manage process for replacement of desk phones, DECT phones and fault finding to problems arising with telecommunication equipment
 - Manage work orders within SNOW with above requests and incidents for faults
 - Manage call functionality request etc of PABX.
 - Manage process for disposal of redundant equipment
 - Trouble-shoot and program DECT phones as needed via OMNIVISTA – data entry and reporting
 - Maintain an indepth knowledge of current systems, programs and databases used for tracking, monitoring and managing equipment allocations, repairs and disposals;
 - Provide end user training for staff utilising telecommunications equipment as required
 - Facilitate upgrades to existing software and hardware
 - Investigate system and hardware faults / errors as they occur and provide feedback to staff
 - Develop and review procedures identifying business rules and policies with overarching governance over the use telephone equipment
- Time manage and prioritize work loads in a client focused environment, showing initiative and problem solving skills.
- Provide an effective and efficient client focused service and to work effectively within a multi- disciplinary team environment.
- Monitor and audit all emergency code groups and responses and provide regular reports to relevant committees on outcomes.
- LTR (Local Telecommunications Representative) duties for Logan and Beaudesert Hospitals.
 - Manage the procurement of mobile phones (includes satellite phones) and associated accessories and services for both corporate clients and SMO's and program equip as required.
 - Cost recovery of equipment allocated out
 - Keep an up to date register for allocated items. This includes the purchase, allocation, maintenance, retrieval & reallocation of such items.
 - Maintain up-date-knowledge of and manage current systems, programs and databases used for tracking, monitoring and managing equipment and service allocations, repairs and disposals.
 - Program various models of mobile phones, arranging SIM exchanges, number ports and installations for Corporate and SMO service;
 - Manage externally provided services ie Telstra coverage for site.
 - Supervise vendors onsite for audits and out-of-hours upgrades.
 - Act as the central point of communication for staff and respond to queries.
 - Provide advice on appropriate equipment for SMO's and advice to SMO's regarding entitlements under communications package.
 - Manage establishment of mobile services for SMO's and corporate services using UXC system and SNOW service call allocations
 - Manage the billing id's for corporate mobile phones
 - Teleconference call management, liaise with service providers to establish teleconference service requirements
 - Management of all smart devices post issue by Smart Devices team
- Identify and develop improvement processes and policies within scope of position to increase efficiency.
 - Ensure patients and other staff are treated fairly and with mutual respect and understanding, regardless of

cultural, religious, ethnic and linguistic backgrounds.

- Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces.

Mandatory qualifications, professional registration and other requirements

- NIL
- It is a condition of employment for this role for the employee to be, and remain, vaccinated against the following vaccine preventable diseases during their employment:
 - measles, mumps, rubella (MMR)
 - varicella (chicken pox)
 - pertussis (whooping cough)

Are you the right person for the job?

How we do things is as important as what we do, therefore within the context of the responsibilities described under 'Your key responsibilities,' the ideal applicant will be someone who can demonstrate the following:

- Experience in team and or switchboard management or equivalent in a large organisation is desirable

Staff Management / Leadership	Provide leadership, direction, motivation and support to all staff reporting to this position to ensure that the strategic objectives of the service can be met and to meet performance and quality expectations of the service. Resilience, being able to cope with any problems, challenges or setbacks and being able to chart a new path for the team towards the end goal. Model the high standards of behaviour we expect from others, e.g. good work ethics, reliability, low absenteeism, etc.
Customer Focus	Polite and respectful when dealing with customers. Keeps customers informed. Shows concern for customers. Sees role as a service to others. Demonstrates empathy where appropriate. Follows up on any issues where appropriate and keeps people informed of progress. Uses language that the listener can understand – doesn't use technical jargon
Communication	Develops a clear message and structures communication to support that message continually referring to reinforce their message. Questions others about their understanding of a message and fleshes out possible interpretations with others to ensure consistent meaning. Provides people with context around information they are communicating rather than simply dumping information onto people. Checks for understanding and interpretation of others by effectively questioning in communication and encouraging two-way dialogue.
Organisation and Planning	Systematically prioritises workload and manages own time effectively, whilst remaining flexible to respond to changing needs. Works within timeframes. Sets clear goals to ensure outcomes are met. Priorities to ensure outcomes focus on importance over urgency where possible.
Problem Solving	Uses good analytical skills, strong problem solving skills and a logical approach to achieve outcomes with an awareness of the big picture.

Quality Focus	Proactive about maintaining a clean, safe work environment. Attention to detail. Completes tasks and ensures outcomes and standards are met. Strives to improve their own work standards. Reviews own work and seeks feedback to ensure it meets standards. Accepts instructions without argument. Follows procedures without taking shortcuts. Understands boundaries and when to escalate. Knows relevant procedures and work instructions. Checks own work. Participates in accreditation processes, service planning, quality improvement and other departmental and team activities and special projects as required. Adopts a quality improvement philosophy through ongoing participation in quality improvement and quality assurance activities.
Continuous Learning	Implements and plans ways to improve their skills across all skills sets, identifying gaps and seeking appropriate interventions and input from others
Technical/Specialist Knowledge	Demonstrate working knowledge of LTR duties, telephony systems, issue, support and replace hardware for end users. Demonstrate working knowledge of Hospital phone systems and services, provide support and understand process for EHealth/Vendor work requirements. Demonstrate working knowledge of technology used by direct reports, support as appropriate and escalate as required for technical support and maintenance. Ability to develop rosters in accordance with standard rostering protocols.

How to apply

Please provide the following information to the panel to assess your suitability:

- A short written response (maximum 1-2 pages, dot points acceptable) on how your experience, abilities, knowledge and personal qualities would enable you to achieve the key responsibilities and meet the skill requirements of the role.
- Your current CV or resume, including two referees. You must seek approval prior to nominating a person as a referee.
- Late applications cannot be submitted online. For a late application to be considered, please arrange approval and submission via the contact person.
- Applications will remain current for 12 months or for the duration of the vacancy. Future vacancies of a temporary, full time and part time nature may also be filled through this recruitment process.
- Only those persons eligible to work in Australia may be employed by Queensland Health. Prospective employees are required to provide proof of identity and documentary evidence of their [right to work in Australia](#).

Your employer

About the Health Information Management Services / Clinical Informatics

Metro South Health is recognized as a leader in Digital Health nationally, providing the largest digitalized health service in Australia and delivering a variety of health outcome benefits.

Clinical Informatics is responsible for the Digital Health/ICT service delivery within Metro South Health. These services include:

- Business Intelligence and Analytics
- Digital Architecture and Security
- Digital Delivery (Program, Projects and Trials)
- Digital Health Clinical Consultation Services
- Health Information Services
- ICT Hosting, System Management and Operations
- Innovation Ideation and Development

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- Switchboard Services
- Telehealth

Clinical Informatics is focused on the translation of technology into healthcare, linking the patient, clinicians and technology to improve health outcomes for our patients and our community.

Clinical Informatics provides a service across Metro South Health including Princess Alexandra Hospital, Logan Hospital, QEII Hospital, Redland Hospital, Beaudesert Hospital and several Community facilities.

Metro South Health is [Australia's first digital health service](#) and one of the largest and in Queensland, with an estimated residential population of approximately one million people or 23 per cent of Queensland's population.

Metro South Health is situated in the South-East corner of Queensland from the Brisbane River in the north to the Redland City Council in the east, and to the Scenic Rim Shire down to the border of New South Wales in the south-west. It is the most culturally diverse area of Queensland with 28.5% of the community born overseas and 16% from non-English speaking countries.

Our ICARE² values of Integrity, Compassion, Accountability, Respect, Engagement and Excellence, shape our culture within Metro South Health. Our values guide our day-to-day decision making and are fundamental to what we care about as a health service, how we behave, how we interact with each other and provide care to the many patients who come through our doors every day.



Workplace diversity

Metro South Health is committed to providing a diverse and inclusive workplace for our people and our community. We encourage people of all genders, races, ages and abilities to apply for roles within our Health Service and strive to ensure that our workplace is free from all forms of discrimination and harassment.

Flexible working arrangements

Metro South Health supports and encourages work-life balance for the mutual benefit of Metro South Health and its employees. Work-life balance is about a person's ability to manage their paid work commitments with their career goals, personal, community and cultural responsibilities. Through flexible working arrangements such as leave, flex time accrual or a reduction in working hours, there is an opportunity to match the individual's requirements with those of the workplace – delivering quality health services.

Additional information

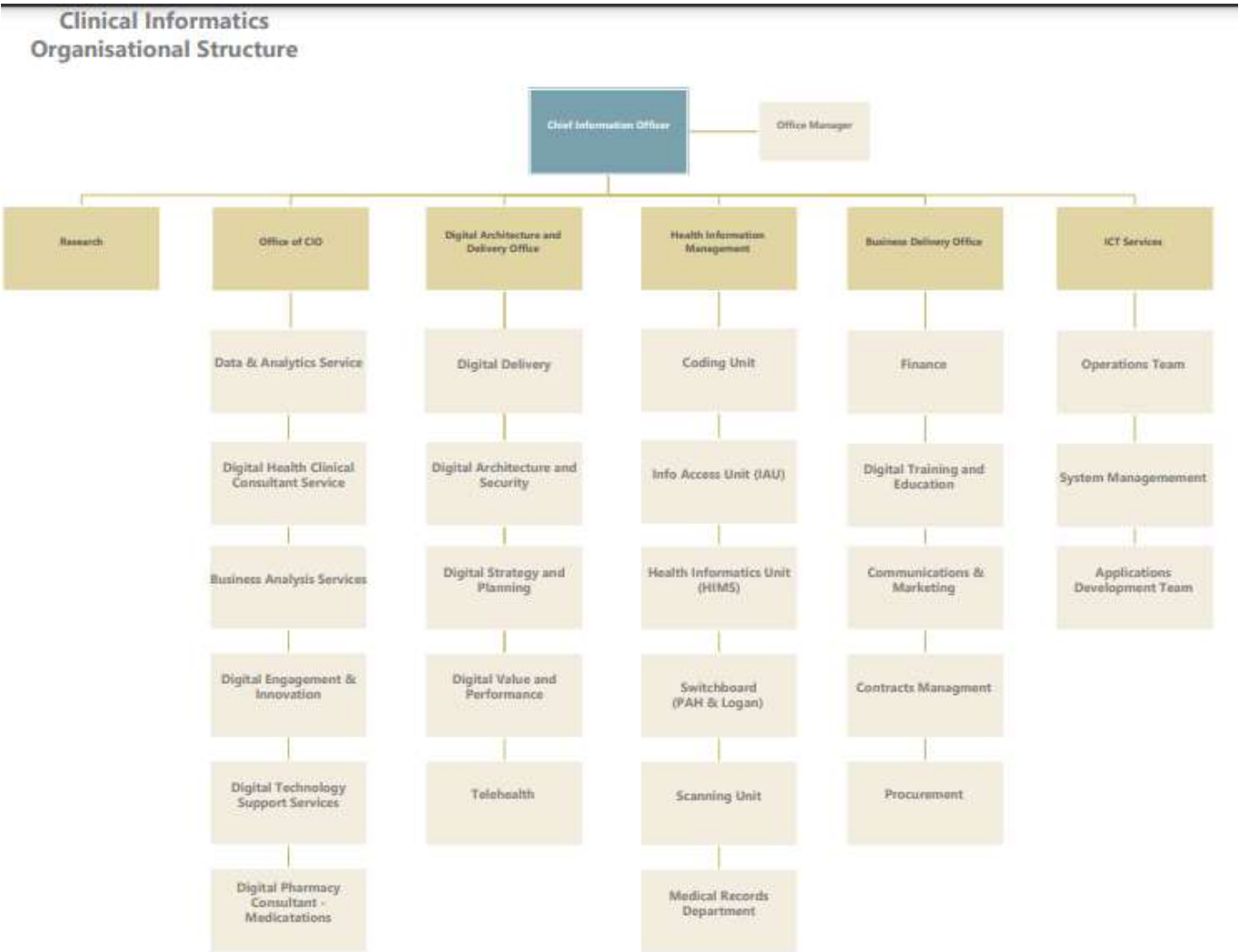
For further information about this opportunity and the benefits and conditions of working at Metro South Health please refer to the **Information for Applicants** document attached with this SmartJobs advertised vacancy.

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Team structure



Instrument of Human Resource Sub-Delegation

COVID-19 Pandemic Event - Paid Special Pandemic Leave

The Director-General, Department of Health has administratively applied by way of Memoranda paid Special Pandemic Leave under the *Minister for Industrial Relations and Commission Chief Executive Directive 01/20: Employment Arrangements in the Event of a Health Pandemic* and paid discretionary Special Leave under *Minister for Employment and Industrial Relations Directive 05/17: Special Leave* to health service employees employed under the *Hospital and Health Boards Act 2011* during the declared pandemic event. Further the Director-General has authorised Health Service Chief Executives to sub-delegate the authority to approve or not approve these leave types. These Directives provide leave entitlements beyond those provided in relevant industrial Awards and Certified Agreements.

Therefore, I, Noelle Cridland, Health Service Chief Executive (HSCE), Metro South Hospital and Health Service, in pursuance of Section 34, Division 3, Part 2 and Section 46*, Division 1, Part 3 of the *Hospital and Health Boards Act 2011*, effective as at **5 December 2022**:

- (a) sub-delegate the power to approve/not approve **paid Special Pandemic Leave** in accordance with Directives 05/17 and 01/20 respectively, for this pandemic event (COVID-19) only, to a Band 9 delegate.

This Instrument does not permit the further sub-delegation of the powers outlined in (a) above.

Approved by:



Noelle Cridland
A/Health Service Chief Executive
Metro South Hospital and Health Service
23/11/22

DIRECTIVE 01/20

Supersedes: 06/18

Minister for Industrial Relations and Commission Chief Executive

Directive:

Employment Arrangements in the Event of a Health Pandemic**This text box does not form part of the directive**

Under the *Human Rights Act 2019* decision makers have an obligation to act and make decisions in a way that is compatible with human rights, and when making a decision under this directive, to give proper consideration to human rights.

1. Purpose:

To prescribe the specific employment conditions to apply in case of disruption caused by the occurrence of a health pandemic as defined at Section 8 of this directive.

2. Effective date: 16 March 2020**3. Legislative authority:**

Section 53 and 54(1) of the *Public Service Act 2008*.

Sections 51 and 52 of the *Public Service Act 2008* apply if there is a conflict with an Act, subordinate legislation or an industrial instrument.

4. Application:

This directive applies to public service employees as defined in section 9 of the *Public Service Act 2008*, including long-term casuals (as defined) and including chief executives, senior executives and senior officers. However, only sections 13.2 and 14.2 about Special Pandemic Leave and Special Leave apply to casuals.

5. Previous references:

Directives 4/09, 12/16 and 06/18.

6. Related information:

- Directives relating to sick leave; recreation leave; long service leave; special leave; hours and overtime; critical incident entitlements and conditions; and relevant industrial instruments.

DIRECTIVE**7. Objective of this Directive**

- 7.1 This directive aims to support the effective management of the Queensland public sector workforce during a health pandemic which will likely have significant impact on the public sector workforce, workplaces and delivery of services.
- 7.2 This directive has been specifically designed to balance the requirements of Government to continue to deliver essential services, with the well-being and legitimate personal, family and community responsibilities of their employees during a health pandemic.

- 7.3 In addition to access to Special Pandemic Leave under this directive and existing industrial entitlements, employees may also access Special Leave in accordance with the Ministerial directive about Special Leave where, because of a health pandemic, employees are not able to work e.g. self-isolation on health advice.

8. Definitions

A health pandemic for the purpose of this directive means a critical health issue, as identified by a declaration of a public health emergency made under Section 319 of the *Public Health Act 2005* with respect to an actual or potential health pandemic.

Regular remuneration for the purposes of this directive means ordinary salary including work related allowances and includes payments based on a projected roster where applicable but excluding overtime.

Long-term casual for the purposes of this directive means a casual employee, engaged by a particular employer, on a regular and systematic basis, for 1 or more periods of employment, during the 1 year immediately before the employee seeks to access an entitlement under this directive.

9. When provisions under this Directive apply

The provisions of this directive are activated when there is a health pandemic as defined in this directive.

10. Implications of a health pandemic

- 10.1 A health pandemic is a critical health issue which will likely have significant impact on the public sector workforce, workplaces and delivery of services. It will directly affect many people's health and well-being, and potentially all the roles performed in the ordinary course of employment.
- 10.2 A health pandemic will arise rapidly, spread quickly and likely come in waves of eight to twelve weeks. It will cause significant disruption to normal business conditions. Likely impacts on workplaces include:
- increased illness and death;
 - increased absence due to illness;
 - increased absence to provide care and support to family members who are ill;
 - increased absence due to social distancing/quarantine measures;
 - increased absence due to the closure of schools, childcare or public transport facilities;
 - possible disruption to supply of goods and materials; and
 - possible disruption to essential service delivery.
- 10.3 In Queensland, the response to a health pandemic will be managed through:
- The State Health Emergency Coordination Centre (SHECC) with:
 - (i) Queensland Health having lead agency responsibility; and
 - (ii) The State Disaster Coordination Centre having responsibility for consequence management involving local and district disaster management groups.
 - Advice on changes to the national alert level through the Chief Health Officer to the Premier via the Director General, Department of the Premier and Cabinet.

11. Assumptions underpinning the Directive

11.1 This directive is underpinned by the following assumptions regarding agency preparedness:

- Agencies have local plans that include action plans for staff deployment during a health pandemic and specific instructions to staff about workplace health and safety precautions required during a health pandemic.
- Agencies have business continuity plans in place for maintaining essential services and critical human resource services such as payroll and employee support.
- Existing conditions of employment will be applied to employment arrangements during a health pandemic wherever possible including specific hours of work arrangements.

11.2 The following assumptions are critical to assessing impact on workplaces.

- A health pandemic will last for a period of up to twelve months with cases occurring in waves across the community. Two or more waves of infection are expected, and these may be separated by three to nine-month periods. The duration of each wave of illness may be about 8 weeks with the second wave possibly having a more serious impact than the first.
- A significant percentage of the workforce will be absent for approximately 8 weeks of the pandemic wave because closure of school or childcare facilities oblige working parents to stay home and look after children. This percentage would vary according to the particular workforce.
- A significant percentage of those remaining at work will become ill at some time during the 8 weeks of a health pandemic wave.
- Every person who becomes ill during a health pandemic wave will have at least 7 shifts/work periods off work.
- There is a 100% additional absence rate. That is, for every person in the remaining workforce who gets ill, another is absent from work because they need to look after a family or household member, or because public transport is not available for them to travel to work.

12. Policy

12.1 Government will make every effort to ensure that the employment conditions of its employees are not adversely affected during a health pandemic. Existing conditions of employment as provided for under relevant industrial instruments will continue to apply to employment arrangements during a health pandemic, including specific hours of work arrangements.

12.2 Agencies need to balance the requirement to continue their essential services with the well-being and legitimate personal, family and community responsibilities of their employees.

12.3 Industrial health and safety arrangements need to support the key health pandemic response aims of containing the spread of the virus and minimising economic and social disruption. Agencies will follow the advice of Queensland Health.

12.4 Where workplace arrangements need to be varied to accommodate business continuity planning for a health pandemic, these arrangements will be, wherever possible;

- made in advance and in consultation with employees, employee representatives and/or relevant unions where required;
- within the relevant legislative framework; and
- applied fairly and equitably at the workplace.

13. Conditions and entitlements

13.1 Upon application, an employee will be entitled to a maximum 20 days paid "Special Pandemic Leave" for use when the employee is unable to attend work and unable to perform work under flexible working arrangements because they:

- have an actual viral infection and have exhausted their sick leave accruals; and/or
- are required to care for immediate family or household member/s who have an actual or suspected viral infection and have exhausted their sick leave accruals; and/or
- are required to care for children as a result of school or childcare centres closures and have exhausted their sick leave accruals.

13.2 A chief executive at their discretion may grant up to a maximum 20 days paid Special Pandemic Leave to a casual employee.

13.3 Special Pandemic Leave will be paid as regular remuneration.

13.4 Sick leave means the entitlement to paid sick leave, inclusive of carers' leave, in accordance with the *Industrial Relations Act 2016*.

13.5 Once Special Pandemic Leave is exhausted, employees will be expected to access their existing recreation leave then their long service leave entitlements. Where an employee seeks to access accrued long service leave in accordance with this directive, the minimum continuous service period of seven years and minimum period of leave to be taken at any one time prescribed in the Ministerial Directive on Long Service Leave shall not apply.

13.6 Employees will be paid their regular remuneration if they are willing and able to attend work but are directed by the employer not to attend work, subject to sections 14.6, 14.7 and 14.8 (below).

13.7 Employees who:

- are directed to attend their usual place of work will be required to attend as directed unless their employer has determined that the workplace poses risk to that employee;
- refuse a lawful direction to attend work for reasons other than those provided in this directive or another reasonable explanation may be disciplined and/or suspended as appropriate;
- advise they are exhibiting symptoms of a viral infection should be directed to remain away from the workplace for the recommended self-isolation time determined by health authorities or until they are cleared to return to work;
- exhibit symptoms of a viral infection while at work should be directed to leave the workplace;
- have had the virus or who have been exposed to the virus should be advised not to return to work until after the minimum prescribed time, as determined by health authorities, has elapsed;
- are absent from work as a result of the health pandemic may not be required to submit a medical certificate. In the alternative, they may be required to provide a copy of a record to confirm they have undergone a relevant assessment or such other document or advice that satisfies agency requirements.

14. Interaction with Ministerial Directive about Special Leave and Other Conditions

14.1 Where an employee is not able to work because of a health pandemic and relevant leave arrangements are not provided for in this directive or in a relevant industrial instrument, the Ministerial Directive about special leave may apply.

Example – where a health pandemic requires an employee to self-isolate in accordance with health advice and the employee is not sick, and they are not able to undertake flexible work arrangements, the employee may apply for special leave which is granted at the discretion of chief executives in accordance with the Ministerial Directive about special leave.

14.2 In a health pandemic, a chief executive may exercise their discretion to grant special leave to a casual employee as if the Ministerial Directive relating to Special Leave applies to casual employees.

14.3 Absence due to unavailability of public transport to attend the workplace

Where employees are unable to attend work because they are reliant on public transport and services are suspended or cancelled the Ministerial Directive about special leave will apply.

14.4 Undertaking volunteer roles in the community

Where employees are absent from work because they are fulfilling volunteer roles in the community related to the health pandemic (e.g. assisting in a hospital or an aged care facility), and that absence is authorised by the employer, such absence is deemed to be included under the leave type “attendance at emergencies” prescribed at Schedule Two or “Declared emergency situation or state disaster” as prescribed in Schedule One of the Ministerial Directive on Special Leave.

14.5 Requirement for supporting documentation

Supporting documentation will be required for all periods of absence on paid Special Pandemic Leave. Where employees access paid Special Pandemic Leave as a result of illness, or need to care for ill family or household members, they may not be required to provide a medical certificate; they may instead provide a copy of a record to confirm they (or their family member) have undergone a relevant assessment or such other documentation or advice which satisfies agency requirements.

14.6 Employees not required at work

Where employees are directed by the agency not to attend their workplace and are unable to undertake flexible work arrangements or work at a reasonable alternative location, such employees are to be paid regular remuneration without debit to any leave account.

14.7 Closedown of a workplace

- (a) Where an agency closes down a workplace due to health and safety issues and/or unavailability of sufficient staff, any employees who normally attend work at that workplace shall either be directed to attend work at a reasonable alternative workplace, undertake flexible work arrangements or be directed not to attend any workplace due to not being required.
- (b) Where directed by the agency not to attend work such employees are to be paid regular remuneration without debit to any leave account.

14.8 Refusal by employee to attend work

Where an employee refuses to attend work for fear of contracting the virus and such refusal is deemed as not reasonable, the chief executive may consider disciplinary action and/or suspension as appropriate.

SCHEDULE A – HEALTH PANDEMIC SCENARIOS

This Schedule describes some possible industrial relations scenarios that could occur during a health pandemic and the available responses under legislative and administrative frameworks existing at the time of publication of this directive. In due course, other directives referred to may be superseded by replacement directives.

No	Scenario	Current Arrangements	Variation for Health Pandemic	Legislative or other Reference
1	Personal illness – full time or part time	Directive relating to Sick Leave Up to 10 days for each completed year of service or part thereof. Additional sick leave available for meritorious service, war service and if illness is contracted because of performing official duties. Employees who use up all their sick leave and paid Special Pandemic Leave may access any available recreation leave balances and then long service leave (LSL) if they have an entitlement.	Access to paid Special Pandemic Leave (SPL) for full time and part time employees – 20 days maximum once sick leave accruals are exhausted. Where paid SPL exhausted, employees may access recreation and then early access to long service leave. Access to LSL with no 7 year qualifying period required.	Directive relating to Sick Leave Directive relating to Long Service Leave Directive relating to Recreation Leave
2	A casual employee is unable to attend work because of: - actual illness; and/or - requirement to care for family or household member/s with actual or suspected illness; and/or - need to care for children as a result of the closure of school or childcare centres; and/or - are unable to attend work because they are reliant on public transport and services are suspended or cancelled.	Directive relating to Sick Leave The Sick Leave directive does not apply to employees engaged on a casual basis under sections 147 (2) (b) or 148 (2) (b) of the <i>Public Service Act 2008</i>.	<u>Long Term Casuals</u> Access to paid SPL – 20 days for long term casuals as defined by the <i>Industrial Relations Act 2016</i> and employed under sections 147(2)(b) and 148(2)(b) of the <i>Public Service Act 2008</i>. That is, a casual employee engaged by a particular employer, on a regular and systematic basis, for several periods of employment during a period of at least 1 year immediately before the employee seeks to access paid special pandemic leave. <u>All Casuals</u> A chief executive at their discretion may grant up to a maximum 20 days paid SPL to a casual employee who is not a long-term casual.	<i>Public Service Act 2008</i> 147(2)(b) (Employment of General Employees) <i>Public Service Act 2008</i> 148(2)(b) (Employment of Temporary Employees) Directive relating to Sick Leave
3	Requirement to self-isolate in accordance with Health advice and the employee (including a casual) is not sick and is not able to work flexibly.	<u>Flexible work arrangements</u> Directive relating to Special Leave Chief executive may grant special leave to the employee, excluding casuals.	<u>All Casuals</u> In a Health Pandemic, a chief executive may exercise their discretion to grant special leave to all casual employees as if the Ministerial Directive relating to Special Leave applies to them.	<i>Public Service Act 2008</i> 147(2)(b) (Employment of General Employees) <i>Public Service Act 2008</i> 148(2)(b) (Employment of Temporary Employees) Directive relating to Special Leave

No	Scenario	Current Arrangements	Variation for Health Pandemic	Legislative or other Reference
4	Employee caring for sick family or household member/s.	Carers' leave debited against accrued sick leave.	Access paid SPL - 20 days maximum once sick leave accruals are exhausted.	Directive relating to Sick Leave Directive relating to Long Service Leave Directive relating to Recreation Leave
5	Employee caring for children due to closure of school and/or childcare centres.	Carers' leave debited against accrued sick leave. Discretionary emergent/compassionate leave under the directive relating to Special Leave for all employees excluding casuals and general employees.	Access paid SPL - 20 days once sick leave accruals are exhausted. Other leave types (i.e. recreation and/or long service leave) may be accessed if required once paid SPL exhausted.	Directive relating to Sick Leave Directive relating to Special Leave Directive relating to Long Service Leave Directive relating to Recreation Leave
6	Staff reliant on public transport unable to travel to work because public transport is suspended.	Telecommuting available on request subject to operational convenience.	Departments can enter additional telecommuting arrangements by agreement until public transport becomes available. Where this is not possible and employees are not able to attend work by their own means, employees can access paid special leave in accordance with a directive relating to Special Leave.	Directive relating to Special Leave Agency telecommuting arrangements
7	Employee absent due to pandemic related death of one or more close family member/s.	Directive relating to Special Leave – bereavement leave Two days leave on full pay on each occasion.	No variation required.	Directive relating to Special leave
8	Employee refuses to attend work for fear of contracting the virus.	<i>Public Service Act 2008</i> – s187: officers may be disciplined if absent without leave and without reasonable excuse.	No variation required as CEOs will require attendance at work unless a risk to workplace safety and health is identified or other direction not to attend is made.	<i>Public Service Act 2008</i> – s187 (Grounds for Discipline)
9	Employee refuses to attend work after being directed to do so by the employer.	<i>Public Service Act 2008</i> – s187: officers may be disciplined if absent without leave and without reasonable excuse.	No variation required.	<i>Public Service Act 2008</i> – s187 (Grounds for Discipline)
10	Employee is absent from work while fulfilling volunteer roles in the community (e.g. State Emergency Service, local hospital, aged care facility, etc).	Directive relating to Special Leave. Leave on full pay as required at departmental convenience.	Chief Executive has the discretion to grant special leave with pay to fulfil additional and relevant volunteer roles in keeping with the intent of the "attendance at emergencies" as prescribed in Schedule 2 or "Declared emergency situation or state disaster" as prescribed in Schedule 1 of the Ministerial Directive on Special Leave.	Directive relating to Special Leave

No	Scenario	Current Arrangements	Variation for Health Pandemic	Legislative or other Reference
11	Employees not required at work.	Where an employee is willing and able to attend work, and is directed by the employer not to attend work, the employee may be directed to attend an alternative work location, undertake flexible work arrangements or if unable to otherwise work will be paid regular remuneration	No variation required.	Regular remuneration as defined in this directive
12	Employee shows symptoms of illness while at work.	Employee can be directed to leave the workplace. Entitlements will be subject to flexible work arrangements and appropriate leave types.	This rule to be strictly enforced to stem spread of the virus. Employee may be asked to undertake a medical assessment.	<i>Public Service Act 2008 – s25</i> (Principles of Public Service Employment)
13	Employee returns to work after a period of illness caused by the pandemic virus.	No special arrangements.	Employees should be advised not to return to work until after the relevant minimum period of time prescribed by health authorities.	<i>Public Service Act 2008 – s25</i> (Principles of Public Service Employment)
14	Employee returns to work after a period of caring for family members who have contracted the pandemic virus.	No special arrangements.	It may be necessary for employees to confirm medical clearance before they enter the workplace. <i>Note: further advice will be sought from Qld Health.</i>	
15	Staff present for work but the work location is not available because of reasons such as quarantine.	Staff could be directed to attend work at alternative locations or undertake flexible work arrangements. Paid Special Leave.	No variation required.	Flexible work arrangements <i>Public Service Act 2008 – s120</i> (Secondment of Officers) and s133 (Transfer of Officers)
16	Staff not observing health and safety protocols.	Employees can be directed to leave the workplace. Employer can implement discipline procedures and/or suspension as appropriate.	No variation required	<i>Public Service Act 2008 – s187</i> (Grounds for Discipline), s25 (Principles of Public Service Employment)
17	Employer decides to close down a workplace because insufficient staff are available.	Where employee is not on approved leave and is ready to attend work and is directed by the agency not to attend work, the employee could be directed to attend work at alternative locations or undertake flexible work arrangements or if unable to otherwise work regular remuneration is payable.	No variation required Refer Item 10 above	Regular remuneration as defined in this directive
18	Employer staggers working hours to minimise chance of spread of illness by increasing physical distance between staff members.	Generally, this can be done in accordance with existing award/EB hours provisions with consultation and by agreement, including public servants under accrued hours arrangements.	No variation required	Relevant award or agreement

No	Scenario	Current Arrangements	Variation for Health Pandemic	Legislative or other Reference
19	Employee is required to work in other locations or doing different work.	Employees can be directed to attend work at different locations.	Employer needs to ensure - employees are able to perform the alternative work; and - the workplace health and safety status of the alternative workplace. Agreement is required from non-officers to perform different roles at same or different levels.	<i>Public Service Act 2008</i> – s133 (Transfer of Officers) Regular remuneration as defined in this directive
20	Employees working from home.	Flexible work arrangements including telecommuting available on request subject to operational convenience.	Chief Executives may extend telecommuting arrangements, temporarily remove some requirements (e.g. WHS inspections) and encourage certain employees to work from home.	Agency flexible work arrangements
21	Available staff work additional hours during the pandemic to cover for others who are ill or absent from the workplace.	If staff are subject to the directive relating to Critical Incident Entitlements and Conditions for overtime remuneration during a declared pandemic. For those staff not subject to the directive, overtime, TOIL, accrued time would be payable as per the existing award entitlements.	No variation required	Directive relating to Critical Incident Entitlements and Conditions Directive relating to overtime Relevant award or agreement
22	Some staff are required to work in lower level positions because of high levels of absenteeism.	Agreement should be sought from employees to temporarily perform lower level duties. Appointments to lower level should not occur and employee maintains normal substantive salary.	No variation required	<i>Public Service Act 2008</i> s133 (Transfer of Officers) Directive relating to Transfer Within and Between Classification Levels and Systems
23	Some staff are required to work in higher level positions because of absenteeism.	Directive relating to Higher Duties applies	No variation required	Directive relating to Higher Duties
24	Staff are required to evidence that absence from work is a result of the declared health pandemic situation – personal illness or carer's responsibilities or unavailability of public transport.	Directive relating to Sick Leave or this directive. An application for sick leave or carer's leave of more than three days is to be supported by a medical certificate or any other evidence of the illness that is acceptable to the chief executive.	Supporting documentation will be required. A medical certificate may not be required. Instead, Staff may be required to provide a copy of a record to confirm they have undergone a relevant assessment or such other document which satisfies agency requirements – for self or another with actual or suspected illness. Employees are required to provide evidence of closure of relevant school of childcare centre and unavailability of public transport to travel to work.	This directive. Directive relating to sick leave
25	Employee seeks special leave because of: - real or suspected illness; and/or - requirement to care for family member/s who have an illness related to the virus; and/or - requirement to care for children as a result of the closure of school or day care facilities; and/or - inability to access public transport to travel to work.	Directive relating to Special Leave CEOs may grant special leave in a range of circumstances which include but are not limited to: - emergency or compassionate grounds - floods, cyclones, bushfires etc - other exceptional circumstances.	In order to ensure equity across the sector, special leave provisions utilised with reference to a health pandemic will be applied as consistently as possible across the sector under guidance from central agencies.	Directive relating to Special Leave

Implementation Guideline – Directive 01/20

Minister for Industrial Relations and Commission Chief Executive Directive: Employment Arrangements in the Event of a Health Pandemic

Dated:

14 April 2020 – Version 2

Purpose

The purpose of this document is to assist industrial relations and human resources practitioners in the Queensland Public Sector with the implementation of Directive 01/20: Employment Arrangements in the Event of a Health Pandemic (the 'Health Pandemic Directive') and specifically with respect to the emergence of the Novel Coronavirus (COVID-19) in early 2020. This document is provided as guidance material only.

Queensland Health is the authoritative source for health-related information regarding COVID-19, including information regarding when employees may be required to self-isolate. Up to date Queensland Health information is available at: www.health.qld.gov.au/coronavirus or by calling **13 HEALTH (13 43 25 84)**.

Frequently asked questions about the management of the Queensland public sector workforce in response to the COVID-19 health pandemic are being developed by the Public Service Commission and will be made available on the Public Service Commission website.

Background – COVID-19

In January 2020, the Queensland Government activated the State Health Emergency Coordination Centre (SHECC) to coordinate the State's response to an outbreak of COVID-19. The SHECC operates in conjunction with Hospital and Health Services' Health Emergency Operations Centres, the Queensland Ambulance Service and the State Disaster Coordination Centre.

On 31 January 2020, the Minister for Health issued a section 319 declaration with respect to COVID-19, which (at the date of version 2 of this document being issued) has been extended to 19 May 2020:

<https://www.legislation.qld.gov.au/view/html/inforce/current/sl-2020-0013#sec.2>

Implementation guidelines

1. When the Health Pandemic Directive entitlements apply

The Health Pandemic Directive supersedes Directive 06/18 and is a joint Directive between the Minister for Industrial Relations and the Public Service Commission Chief Executive pursuant to sections 53 and 54 of the *Public Service Act 2008* (PS Act).

The Health Pandemic Directive was approved for release on 16 March 2020. The Directive comes into effect from that date **and** upon a declaration of a public health emergency made under section 319 of the *Public Health Act 2005* with respect to an actual or potential health pandemic (see sections 9 and 10 of the Directive).

For the COVID-19 health pandemic, the provisions of the Health Pandemic Directive take effect from the 16 March 2020 (i.e. the provisions are not backdated to the issue of the declaration under s319 of the *Public Health Act 2005* made on 31 January 2020).

2. Health Pandemic Directive application

Version 2 note: OIR is aware that since the publication of the revised Directive on 16 March 2020, entities identified in the 'not covered' column at section 17 have started to apply the terms of the Directive through administrative or other mechanisms.

The Health Pandemic Directive applies to 'public service employees' as defined in section 9 of the PS Act including long-term casuals (as defined in the Directive). However, only sections 13.2 and 14.2 of the Health Pandemic Directive about Special Pandemic Leave and Special Leave apply to casuals.

This means the Health Pandemic Directive applies to the majority of public servants in departments. There are some exceptions e.g. sworn police officers; firefighters; employees of Hospital and Health Services – however see version 2 note above.

The Health Pandemic Directive also applies to Public Service Offices (PSOs) prescribed in schedule 1 of the PS Act and those PSOs that specify application of the Directive in the *Public Service Regulation 2018*.

The Office of Industrial Relations (OIR) has prepared an indicative coverage table which is outlined at the end of this guideline. Entities should confirm their own coverage.

The Health Pandemic Directive does not apply to Government Owned Corporations.

Where the Health Pandemic Directive does not automatically apply, public sector entities and Government Owned Corporations are **strongly encouraged** to apply the Directive through administrative or other arrangements to provide consistent industrial entitlements for public sector employees affected by the COVID-19 where possible.

3. Senior Officers (SOs), Senior Executive Service (SES), Chief Executives (CEs) and s.122 contracts

The Health Pandemic Directive applies to SO, SES, CE and s.122 contract employees.

The SO (11/17) and SES (10/17) Directives already apply the Ministerial Directive about Special Leave (05/17). In addition, Directives 11/17 and 10/17 provide a broad recognition that the ordinary hours of duty are determined by their chief executive, having regard to the health, well-being and work-life balance of the employee.

4. Entitlements provided in the Health Pandemic Directive

A flow-chart has been developed to assist in determining key employee entitlements during a health pandemic. The flow-chart is attached at the end of this document.

Existing entitlements

The Health Pandemic Directive provides two principal entitlements when there is a declared health pandemic, which are in addition to existing industrial entitlements for employees. These two entitlements have not changed from the superseded Directive (06/18):

- A maximum of up to 20 days paid “Special Pandemic Leave” when an employee’s paid sick leave has been exhausted; and
- Early access to pro-rata long service leave, regardless of length of service, when all other paid leave accruals have been exhausted.

The specific details of how and when these entitlements are enlivened are detailed in the Health Pandemic Directive at section 13.

The Health Pandemic Directive provides that where an employee **is directed** by their employer not to attend their workplace (e.g. the workplace has closed) and the employee is unable to undertake a flexible work arrangement (e.g. work at a reasonable alternative location or work from home), such employee will be paid their regular remuneration without debit to any leave account.

New entitlements

The Health Pandemic Directive extends the Special Pandemic Leave entitlement and the application of the Ministerial Directive about Special Leave to all casual employees, at the discretion of the relevant Chief Executive (for more details about the entitlements for casuals – see the topic below).

While not a new entitlement – the Health Pandemic Directive now directs the reader to the Ministerial Directive about Special Leave for situations where an employee is not able to work because of a health pandemic and relevant leave arrangements are not provided for in the Directive or in a relevant industrial instrument.

An example is provided – where an employee is required to self-isolate in accordance with health advice and the employee is not sick, and they are not able to undertake flexible work arrangements, the employee may apply for Special Leave which is granted at the discretion of their Chief Executive (or delegate) in accordance with the Ministerial Directive about Special Leave.

5. Special Pandemic Leave

See section 13.1 of the Health Pandemic Directive:

Upon application, an employee will be entitled to a maximum 20 days paid Special Pandemic Leave for use when the employee is unable to attend work and unable to perform work under flexible working arrangements because they:

- have an actual viral infection and have exhausted their sick leave accruals; and/or
- are required to care for immediate family or household member/s who have an actual or suspected viral infection and have exhausted their sick leave (carer's leave) accruals; and/or
- are required to care for children as a result of school or childcare centres closures and have exhausted their sick leave (carer's leave) accruals.

Special Pandemic Leave will be paid as regular remuneration which is defined in the Directive.

The maximum 20 days Special Pandemic Leave **is not** convertible to an hourly entitlement. This means an employee will use one day of their Special Pandemic Leave for each work engagement they would normally have worked, regardless of the length of their normal work/shift for that day. For example:

- if a part-time employee normally works four (4) hours, that constitutes one day of Special Pandemic Leave; or
- if an employee normally works a 12 hour shift, that constitutes one day of Special Pandemic Leave.

Special Pandemic Leave need not be taken consecutively.

Special Pandemic Leave is exclusive of public holidays.

6. Regular remuneration

"Regular remuneration" is defined in the Health Pandemic Directive as: ordinary salary including work related allowances and includes payments based on a projected roster where applicable but excluding overtime.

There has been no change to the remuneration entitlement for paid Special Pandemic Leave provided for in superseded Directive: 06/18.

7. Higher Duties

The Government made a commitment to allow for payment of any form of paid leave at the higher duties amount when it is taken during the employees' higher duties relieving period in settlement of negotiations to replace the State Government Entities Certified Agreement 2015 (the Core).

In recognition of this commitment, during this health pandemic, employees are to be paid the higher duties amount during any form of paid leave taken during the employees' higher duties relieving period. This will include paid Special Leave and paid Special Pandemic Leave.

8. Employee evidence – Special Pandemic Leave

While there is still a requirement for employees to provide supporting evidence (documentation or advice to the satisfaction of the Chief Executive or delegate) for all periods of absence on Special Pandemic Leave, where employees access Special Pandemic Leave as a result of illness, or need to care for ill family or household members, they may not be required to provide a medical certificate. Employees may provide a copy of a record to confirm they (or their family member) have undergone a relevant assessment or such other documentation or other advice which satisfies agency requirements. There is no one type of mandated evidence prescribed by the Directive.

Example – where a school has closed and the employee needs to provide care for their child, an email/letter/other advice from the school or Department of Education about the school closure including relevant dates may be considered appropriate.

9. Entitlements for casuals

Long-term casuals are automatically entitled to the paid Special Pandemic Leave up to a maximum of 20 days.

A long-term casual, for the purposes of the Health Pandemic Directive (at section 8), means: *‘a casual employee, engaged by a particular employer, on a regular and systematic basis, for 1 or more periods of employment, during the 1 year immediately before the employee seeks to access an entitlement under this Directive.’* This definition is drawn from Section 15 of the *Industrial Relations Act 2016*.

Furthermore, the Health Pandemic Directive extends, at the discretion of the relevant Chief Executive, access to the paid Special Pandemic Leave (up to a maximum 20 days) to all other casuals; and access to Special Leave under the Ministerial Directive for Special Leave (05/17) to all casuals.

Note:

While the discretion to grant leave to a casual employee rests with the relevant Chief Executive, agencies should consider the following when deciding an application for leave:

- Does the casual employee work on a regular and systematic basis such as on a roster?
- If not for the health pandemic impact, is the casual employee anticipated to continue to be employed?

Leave should generally be reflective of the likely work pattern for the employee concerned e.g. their roster. Where this is not possible, an averaging methodology may be used, for example – see Directive 17/18: Paid Parental Leave section 9.6.

10. Part-time and casual employees

Each employee is entitled to receive up to a maximum of 20 days paid Special Pandemic Leave. The paid Special Pandemic Leave is not pro-rata for a casual or part-time employee.

In cases of an employee being engaged by more than one public sector employer, the 20 days special pandemic leave is not multiplied by each engagement. For example, a casual employee who is engaged by more than one agency within the Queensland Government is entitled to receive up to a total

maximum of 20 days Special Pandemic Leave. That is, the part-time or casual employee receives Special Pandemic Leave for 20 rostered workdays of the hours the employee would have normally worked.

11. Industrial arrangements during self-isolation

Where a health pandemic requires an employee to self-isolate in accordance with health advice and the employee is not sick, and they are not able to undertake flexible work arrangements, the employee may apply for Special Leave which is granted at the discretion of Chief Executives in accordance with the Ministerial Directive about Special Leave.

This example is consistent with advice from the Public Service Commission.

12. Health Pandemic Scenarios

A number of workplace scenarios are contained in Schedule A to the Directive. Agencies are encouraged to review these scenarios. Where further advice about this Directive is needed, please forward all requests for advice to OIR: IR@oir.qld.gov.au

13. Public transport not available to get to work

The Health Pandemic Directive provides that the Ministerial Directive about Special Leave will apply where employees are unable to attend work because they are reliant on public transport and those services are suspended or cancelled due to the COVID-19 event and flexible work arrangements are not possible.

Public transport includes commuter trains or other light rail, buses and ferries.

Public transport does not include private ride sharing arrangements such as taxis, uber or carpooling. However, special consideration should be given to employees with a disability who are normally reliant on these forms of travel for work.

14. If an employee voluntarily undertakes personal travel to a country or a known risk area that will require self-isolation, are they entitled to Special Leave?

As outlined above and in the Health Pandemic Directive, where an employee is required to self-isolate on health advice and the employee is not sick, and they are not able to undertake flexible work arrangements, the employee may apply for Special Leave which is granted at the discretion of Chief Executives in accordance with the Ministerial Directive about Special Leave.

Employers and employees should have discussions regarding personal overseas travel e.g. for annual leave, before an employee proceeds on such travel to explain and agree on expectations and entitlements for their return to the workplace.

15. Critical incident Directive

The Directive about Critical Incident Entitlements and Conditions (06/16) continues to apply when activated in the normal way. Employees involved in response and recovery programs of work led by the relevant agency will be advised if Directive 06/16 is applicable to their duties.

16. Employee assistance service (EAS)

It is appreciated that employees may need additional support during a health pandemic. Employees have access to confidential counselling and support services through their local EAS provider.

17. Health Pandemic Directive – Government Entities – Automatic Coverage Table

Covered	Not Covered
Departments	Public Service Offices and Statutory Bodies
Premier and Cabinet	Crime and Corruption Commission
Aboriginal and Torres Strait Islander Partnerships	Cross River Rail
Agriculture and Fisheries	Hospital and Health Services and Queensland Health (excludes employees employed under the <i>Public Service Act 2008</i> in Queensland Health and Queensland Ambulance Service)
Child Safety, Youth and Women	Legal Aid Queensland
Communities, Disability Services and Seniors	Racing Queensland
Queensland Corrective Services	Stadiums Queensland
Education – Including Teachers	Safe Food Production QLD
Employment, Small Business and Training	Southbank Corporation
Environment and Science – Including Arts Queensland and Corporate Administration Agency, and State Library, Queensland Art Gallery and Gallery of Modern Art and Queensland Museum - excluding employees of the Board	TAFE Queensland
Housing and Public Works	Queensland Institute of Medical Research
Innovation and Tourism Industry Development	Queensland Police Service – sworn officers (excludes employees employed under the <i>Public Service Act 2008</i>)
Justice and Attorney General	Queensland Ombudsman
Local Government, Racing and Multicultural Affairs	Queensland Competition Authority
Natural Resources, Mines and Energy	The Queensland Ambulance Service - Paramedics
Treasury	The Queensland Fire and Emergency Service – Firefighters including auxiliary Firefighters (excludes employees employed under the <i>Public Service Act 2008</i>)
State Development, Manufacturing, Infrastructure and Planning	The Queensland Rural and Industry Development Authority
Transport and Main Roads – including Maritime Safety Queensland	Tourism and Events Queensland
Youth Justice	Trade and Investment Queensland
Office for Veterans	WorkCover Queensland
	Office of the Governor

Public Service Offices and Statutory Bodies	Government Owned Corporations
Audit Office	Clean Co Queensland
Building and Construction Industry (Portable Long Service Leave) Authority (QLeave)	CS Energy
Building Queensland	Energy Queensland
Electoral Commission of Queensland	Gladstone Ports Corporation
Family Responsibilities Commission Registry	North Queensland Bulk Ports Corporation
Gold Coast Waterways Authority	Ports North
Health and Wellbeing Queensland	Powerlink
Industrial Registry	QCN Fibre
Land Tribunal	Queensland Rail
Mental Health Review Tribunal	SEQ Water
Office of the Director of Child Protection Litigation	Stanwell
Office of the Energy and Water Ombudsman	Sunwater
Office of the Health Ombudsman	Townsville Port
Office of the Independent Assessor	Other Groups
Office of the information commissioner	Ministerial staff
Office of the Inspector-General of Emergency Management	
Office of the Land Access Ombudsman	
Office of the Prostitution Licensing Authority	
office of the public guardian	
Office of the Queensland College of Teachers	
Office of the Queensland Parliamentary Counsel	
Office of the training ombudsman	
Public Safety Business Agency	
Public Service Commission	
Public Trust Office	
Queensland Curriculum and Assessment Authority	
Queensland Family and Child Commission	
Queensland Human Rights Commission	
Queensland Mental Health Commission	
Queensland Racing Integrity Commission	
Queensland Reconstruction Authority	
The Gasfields Commission - Applied ruling	
The Queensland Building and Construction Commission and the Queensland Building and Construction Employing Office - Applied ruling	
The Residential Tenancies Authority and the Residential Tenancies Employing Office - Applied ruling	
Chief Executives, Senior Executive Service, Senior Officers and s.122	
CE, SES, SO and CE employees are covered by the Directive.	

New in version 2:**18. Viral infection**

The reference in section 13.1 of the Health Pandemic Directive to viral infection is not limited to the virus which is the subject of the health pandemic (i.e. COVID-19). The reason for this is twofold:

- 1) during the health pandemic, it may not always be possible for an employee to obtain a positive diagnosis that they (or the person they are caring for) are infected with COVID-19 and/or the diagnosis may take some time after the employee/individual has become sick; and
- 2) during the health pandemic, it is important that employees with viral infections other than COVID-19 (e.g. influenza) also remain away from the workplace.

19. Hours of work arrangements

The Health Pandemic Directive states at 12.1:

“12.1 Government will make every effort to ensure that the employment conditions of its employees are not adversely affected during a health pandemic. Existing conditions of employment as provided for under relevant industrial instruments will continue to apply to employment arrangements during a health pandemic, including specific hours of work arrangements.”

The intention of this section is to highlight that employees’ existing employment arrangements should continue to be observed during the health pandemic as far as possible. For example – if an employee is working from home, their existing hours of work arrangements would not automatically change as a result.

If an agency proposes a change to existing employment arrangements under a relevant industrial instrument, the agency should raise this with the employee/s and the relevant union/s, in the normal way.

Arrangements, such as the accrual of flexitime, will continue to remain subject to organisational requirements that work is available to be done outside of employees’ standard daily or weekly hours and the employees can perform that work. Agencies are reminded that the existing requirement at clause 15.6 and Schedule 3 of the *Queensland Public Service Officers and Other Employees Award – State 2015* (QPSOOE Award) for agencies or departments to arrange work such that all eligible employees can have access to an accrued day or part-day off per work cycle continue to apply.

Some entities have unique and specific hours of work arrangements such as Accrued Days Off (ADO) for school holiday periods, including those in the Department of Education, who rely on those arrangements for continuity of income and these should remain honoured during the health pandemic to mitigate adverse effects on the employee. Existing ADO accruals should continue to be honoured.

By way of example, if an employee’s working hours arrangement under the QPSOOE Award is to work additional hours across four days per week to accrue the fifth day off, this arrangement continues notwithstanding the employee performing the work from home during the COVID-19 Health

Pandemic. Likewise, if rosters have been implemented in line with clause 6.2 (procedures to implement facilitative award provisions) of the QPSOOE Award, those rosters remain in place until such time they are varied in accordance with the award. If the manager proposes a change to such arrangements it should be raised and managed with the employee/s and the relevant union/s, in the normal way.

20. Remuneration entitlements for sick leave, special leave and special pandemic leave

The Health Pandemic Directive does not change the remuneration employees are normally entitled to receive when granted:

- Special Leave as provided in the Ministerial Directive about Special Leave (05/17);
- Paid Special Pandemic Leave as provided in the Health Pandemic Directive. Note: the remuneration payable is the same as that provided in superseded Ministerial Directive: 06/18, which was originally introduced in 2009 via Directive 04/09; and
- Sick leave (including carer's leave) as provided in industrial instruments.

Employees on higher duties will continue to receive the higher duties rate when on leave as outlined in section 7 (above).

21. Special Pandemic Leave not able to be taken at half pay

The Special Pandemic Leave entitlement is for a maximum of 20 days paid at the employee's regular remuneration. There is no provision to apply the entitlement at half pay.

22. Special Pandemic Leave not able to be taken for part days

There is no provision to take the Special Pandemic Leave as a 'part-day' absence.

Where an employee's sick leave balance is insufficient to cover their next entire work engagement prior to them taking Special Pandemic Leave – there are a number of options available:

- The employee may commence taking Special Pandemic Leave when the employee's sick leave balance becomes insufficient to cover their next work engagement;
- The employee may take Special Pandemic Leave on the same day as the employee takes the remainder of their sick leave balance. Note: a full day of Special Pandemic Leave will be debited where this occurs; or
- The employee may take unpaid sick leave for the remainder of the work engagement that is not covered by paid sick leave. The employee can then commence Special Pandemic Leave on the next work engagement.

Example: An employee normally works 7.6 hours per day. The employee is currently on sick leave. The employee will be eligible to receive Special Pandemic Leave. The employee's remaining sick leave balance is 4.0 hours, so it is insufficient to cover their next absence of 7.6 hours in its entirety. The employer and employee may choose how to resolve this issue based on the points outlined above.

23. Temporary engagements which expire during health pandemic

The PSC have provided advice on temporary engagements which can be located here: <https://www.forgov.qld.gov.au/covid-19-frequently-asked-questions-public-service-hr-practitioner-and-managers#employment-conditions>

This information is regularly updated by the PSC.

24. Vulnerable workers

A number of situations have arisen concerning vulnerable workers. The PSC have provided information on vulnerable worker categories (<https://www.forgov.qld.gov.au/support-employees-during-health-pandemic-covid-19>). Additional categories of workers who have vulnerabilities may also be identified by the employee providing the employer with medical advice.

The Australian Health Protection Principal Committee (AHPPC) recommends that where vulnerable workers undertake essential work, a risk assessment must be undertaken. Risk needs to be assessed and mitigated with consideration of the characteristics of the worker, the workplace and the work. This includes ensuring vulnerable people are redeployed to non-customer-based roles where possible. Where risk cannot be appropriately mitigated, employers and employees should consider alternate arrangements to accommodate a workplace absence (<https://www.health.gov.au/news/australian-health-protection-principal-committee-ahppc-advice-to-national-cabinet-on-30-march-2020>).

- Vulnerable workers who are not ill and are required to self-isolate should work flexibly wherever possible;
- If flexible work is not possible, the employee (including a casual) may apply for special leave at CE discretion;
- The granting of special leave should include a review period that the agency considers appropriate (for example: an initial 14-day review period of special leave may be suitable as this aligns with the current self-isolation requirements for people who have come into contact with COVID-19 or are returning to Australian from overseas or interstate);
- The employee should also be informed that they should remain available as they may be required to return to the workplace if safe to do so, or undertake flexible work at a point where appropriate work can be identified;
- The employee should also be informed that they are obliged to promptly inform their employer if their circumstances change (for example, if they become sick and should be placed on the correct form of leave);
- Agencies are reminded to keep in regular contact with vulnerable workers.

25. Employee Mobilisation Service

The PSC is leading the employee mobilisation service. Questions regarding this should be directed to the PSC via the online enquiry or via phone: <https://www.forgov.qld.gov.au/request-advice-about-directives-policies-and-guidelines>.

26. Entitlements where the Health Pandemic Directive does not deal with a specific scenario

If an agency encounters a situation which it believes it cannot address after first reading the Health Pandemic Directive and Implementation Guidelines, please contact OIR for further advice using the following email address: IR@oir.qld.gov.au

Please limit any questions to **actual scenarios** (not hypothetical situations) to ensure resources can continue to be used as efficiently as possible during this time.

Version Control

Version	Date	Comments
1.0	16 March 2020	Issued with released if the Directive 01/20
2.0	14 April 2020	Released with additional scenarios from section 18 and other minor updates

Employment arrangements in the event of a health pandemic – March 2020

